

ASCII MASTER FLOW - PANEL 1/12: Constitutional starting point

ARTICLE 39A -> equal-opportunity justice + free legal aid against economic/other disability.

42ND AMENDMENT ACT, 1976 -> inserted Article 39A in Part IV.

ARTICLE 21 -> reasonable, fair and just procedure; speedy trial and qualifying legal aid.

HUSSAINARA (1979) -> speedy trial + legal aid; State cannot plead inability.

KHATRI II (1981) -> duty from first production/remand; judge must inform.

SUK DAS (1986) -> uninformed, unaided indigent accused: conviction/trial vitiated.

ANITA KUSHWAHA (2016) -> effective, accessible, timely and affordable justice.

ASCII MASTER FLOW - PANEL 2/12: Legal-services ladder and meaning
1987 ACT, s 2(1)(c) -> case/proceeding assistance + legal advice.
NALSA (ss 3-4) -> national policy, schemes, funds, literacy, research, monitoring.
SCLSC (s 3A) -> Supreme Court legal services.
SLSA (ss 6-7) -> State implementation, services, Lok Adalats.
HCLSC (s 8A) -> High Court legal services.
DLSA (ss 9-10) -> district programmes + Taluk coordination.
TALUK COMMITTEE (ss 11A-11B) -> local services + Lok Adalats.

ASCII MASTER FLOW - PANEL 3/12: Eligibility and entitlement

SECTION 12 ALTERNATIVE GATES:

SC/ST | trafficking/begar victim | woman/child | disability |
mass disaster/ethnic violence/caste atrocity/flood/drought/earthquake/industrial disaster |
industrial workman | specified custody | income below prescribed limit.

SECTION 13 -> authority must find a prima facie case to prosecute or defend.

INCOME AFFIDAVIT -> ordinarily sufficient unless reason exists to disbelieve.

TRAP -> eligibility is not only a national income test.

ASCII MASTER FLOW - PANEL 4/12: Ordinary Lok Adalat jurisdiction

SECTION 19 -> statutory sitting organised by listed authorities/committees.

PENDING CASE or PRE-LITIGATION MATTER -> must fall within relevant court jurisdiction.

NON-COMPOUNDABLE OFFENCE -> excluded.

SECTION 20 REFERRAL -> agreement/application/court satisfaction + required hearing.

ROLE -> justice/equity/fair-play guided conciliation; no trial on merits.

ASCII MASTER FLOW - PANEL 5/12: Ordinary award and failure
GENUINE COMPROMISE -> s 21 award -> deemed civil-court decree/order.
EFFECT -> final and binding; no statutory appeal; referred court fee refundable.
NO COMPROMISE -> no award and no merits decision.
PENDING CASE -> record returns; court continues from pre-referral stage.
PRE-LITIGATION MATTER -> parties advised to seek ordinary court remedy.
JALOUR SINGH (2008) -> ordinary Lok Adalat is conciliatory, not adjudicatory.
NARROW ARTICLES 226/227 ROUTE -> consent, fraud, jurisdiction or comparable illegality.

ASCII MASTER FLOW - PANEL 6/12: National Lok Adalat
NATIONAL LOK ADALAT -> coordinated statutory drive across jurisdictions.
EACH BENCH -> ordinary Sections 19-21 power.
NATIONAL SCALE != new constitutional court or separate appellate tier.
MEGA/MOBILE/CONTINUOUS/E-LOK ADALAT -> administrative mode, not expanded power.

ASCII MASTER FLOW - PANEL 7/12: PLA jurisdiction

CHAPTER VI-A, ss 22A-22E -> standing public-utility pre-litigation forum.

PUBLIC UTILITY -> transport; postal/telegraph/telephone; power/light/water;
sanitation; hospital/dispensary; insurance; additionally notified service.

APPLICATION -> before dispute reaches court; same-dispute court route barred thereafter.

EXCLUSIONS -> non-compoundable offence + current notified pecuniary framework.

NO UNSOURCED FROZEN RUPEE CEILING.

ASCII MASTER FLOW - PANEL 8/12: PLA sequence and effect
STATEMENTS/DOCUMENTS -> independent and impartial conciliation.
ELEMENTS OF SETTLEMENT -> PLA formulates possible terms -> party observations.
AGREEMENT -> signed settlement award.
NO AGREEMENT -> if dispute relates to no offence, s 22C(8) merits decision.
s 22D -> natural justice/objectivity/fair play/equity; not bound by CPC/Evidence Act.
s 22E -> majority award; final/binding; deemed decree; executable.
CANARA BANK (2022) -> do not skip statutory conciliation before adjudication.

ASCII MASTER FLOW - PANEL 9/12: Ordinary versus Permanent

ORDINARY -> pending/pre-litigation | broad court-linked subject | consent-only outcome.

PLA -> pre-litigation only | defined public utility | conciliation then bounded merits power.

BOTH -> statutory finality + deemed decree + constitutional legality.

INTERGLOBE (2011) -> keep the two mechanisms distinct.

BAR COUNCIL (2012) -> Chapter VI-A design upheld.

ASCII MASTER FLOW - PANEL 10/12: Family Courts

1984 ACT s 3 -> State establishes after High Court consultation.

s 7 -> marriage/status/property/injunction/legitimacy/maintenance/guardianship/custody/access.

s 9 -> settlement endeavour; failure permits adjudication.

ss 10-17 -> adapted procedure, in camera rule, no lawyer as of right, useful evidence, reasons.

s 19 -> High Court appeal from qualifying non-interlocutory orders; consent and maintenance category exclusions plus specified revision route.

FAMILY COURT != compromise-only Lok Adalat.

ASCII MASTER FLOW - PANEL 11/12: Gram Nyayalayas and adjacent forums
2008 ACT s 3 -> State MAY establish after High Court consultation.
s 9 -> mobile court; ss 11-14 -> scheduled/notified civil and criminal jurisdiction.
s 26 -> civil conciliation; failure -> judicial decision.
ss 33-34 -> Session/District appeal routes with statutory exclusions.
GRAM NYAYALAYA != constitutionally mandatory Panchayat court.
FAST TRACK COURT -> capacity scheme; SPECIAL COURT -> parent statute/notification.
TRIBUNALS -> Topic 46; MEDIATION -> separate statutory consensual route.

ASCII MASTER FLOW - PANEL 12/12: Examiner answer route

STEP 1 CONSTITUTION -> Article 39A + Article 21 proposition.

STEP 2 SOURCE -> exact Act, Chapter and Section.

STEP 3 FORUM -> authority, Lok Adalat, PLA, Family Court or Gram Nyayalaya.

STEP 4 FILTER -> stage + subject + consent + merits power.

STEP 5 EFFECT -> settlement/judgment/award + appeal/review.

STEP 6 EVALUATE -> affordability, distance, delay, counsel quality, voluntariness, staffing.

QUALIFIED VERDICT -> plural forums advance access only when jurisdiction and fairness survive.